

Case	Title / Nature of Case
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Line #1

22-CIV-05126

ADAM PARMENTIER VS. DOE 2

ADAM PARMENTIER
DOE 2

PRO/PER

MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

For the reasons stated below, Defendant DOE 1, a public school district's ("the District") Motion for Summary Judgment, filed July 25, 2025, is **GRANTED**. (Code Civ. Proc. Sect. 437c.)

The FAC's allegations

Plaintiff Adam Parmentier's Aug. 17, 2023 First Amended Complaint ("FAC") alleges that in 1978-1980, when Plaintiff was in high school, Plaintiff was sexually assaulted by a school psychiatrist. The present Motion was filed by Defendant Doe 1, a public entity school district in San Mateo County, which Plaintiff has sued for negligence. Plaintiff's case is based on a single incident of alleged sexual assault that occurred in 1977-78.

The FAC asserts the following causes of action: (1) Sexual Assault of a Minor (against DOE 1) (which is not asserted against the school District, and thus, is not relevant to this Motion); and (2) Negligence, including (a) "Negligence of District and Employees under Govt. Code § 815.2." and (b) "Negligence per se," based on the District's alleged violation of Pen. Code § 11166, which imposes a statutory duty to report known or suspected incidents of sexual molestation or abuse of minors to a child protective agency. Only the Second Cause of Action (negligence) is relevant here.

Legal standard

A motion for summary judgment shall be granted if the papers submitted show there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. Sect. 437c(c).) A defendant has met its burden of showing that a cause of action has no merit if defendant shows that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. (Sect. 437c(p)(2).)

If a defendant meets this initial burden, the burden shifts to plaintiff to show that a triable issue of one or more material facts exists to that cause of action, or a defense thereto. (Id.) "A triable issue of material fact exists if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion, in accordance with the applicable standard of proof." (*Pasadena Metro Blue Line Constr. Auth. v. Pac. Bell Tel. Co.* (2006) 140 Cal.App.4th 658, 663.)

Because summary judgment denies the adverse party a trial, it should be granted with caution. (*Assilzadeh v. California Fed. Bank* (2000) 82 Cal.App.4th 399, 409.) Declarations of the moving party are strictly construed, those of the opposing party are liberally construed, and doubts as to whether a summary judgment should be granted must be resolved in favor of the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843-856.)

Defendant School District met its initial burden under CCP § 437c of showing that Plaintiff lacks evidence supporting the asserted negligence claim.

As against defendant school District, Plaintiff's claim for "Negligent Supervision and Protection of a Minor" under Govt. Code § 815.2(a) fails as a matter of law.

Government Code Sect. 815.2 states:

- (a) A public entity is liable for injury *proximately caused* by an act or omission of *an employee* of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.

(Govt. Code § 815.2(a) [italics added].)

First, there is no dispute here that the perpetrator, Dr. Ayers, was not a District employee. (UMF 7, 8; 7-25-25 Appendix, Ex. D, Plt.'s response to RFA No. 3.) There is no evidence that the District ever employed, paid, or had any control over the alleged perpetrator, Dr. Ayers.

Second, without resorting to speculation, there is no evidence that the school District, including any District employee, *played any role in referring, selecting, or recommending Dr. Ayers as Plaintiff's therapist*. Rather, the evidence indicates that the school district suggested/recommended to Plaintiff's parents that Plaintiff see *a mental health professional*. (UMF 2, 4 [Plaintiff testifying that he does not know how Dr. Ayers was selected as the therapist that he would visit]; see also Plaintiff's Tr. at 131:

Q. ... there's a million different doctors you could see, do you have any knowledge about how that doctor, Dr. Ayers, was selected?

A. How he was selected. I don't.

This issue was discussed extensively during Plaintiff's deposition. Viewing the deposition testimony as a whole, it is apparent that Plaintiff has no evidence that the District selected, recommended, or suggested that Plaintiff see Dr. Ayers as his therapist, as opposed to recommending that Plaintiff see *a* therapist. (Id.)

Third, there is no evidence that the District, including any District employee, knew that Plaintiff was seeing Dr. Ayers *before* the alleged sexual assault occurred. Plaintiff testified that Dr. Ayers assaulted him on one

occasion. There is no evidence that anyone associated with District knew that Plaintiff was seeing Dr. Ayers until after the fact.

Further, Education Code § 44808 shields the District from liability here because there is no evidence that Plaintiff ever saw Dr. Ayers on school property, or during school hours, or that anyone associated with the District played any role in taking Plaintiff to see Dr. Ayers. (UMF 5, 6.) Plaintiff testified that he saw Dr. Ayers after school hours, off school grounds (at Dr. Ayers private office), and that Plaintiff's mother took him to those appointments. (Append. of Evidence, Ex. B [Plts. Tr. 147-148].) Education Code § 44808, states, in part:

Notwithstanding any other provision of this code, no school district, ... or any officer or employee of such district ... shall be responsible or in any way liable for the conduct or safety of any pupil of the public schools at any time when such pupil is not on school property, unless such district, board, or person has undertaken to provide transportation for such pupil to and from the school premises, has undertaken a school-sponsored activity off the premises of such school, has otherwise specifically assumed such responsibility or liability or has failed to exercise reasonable care under the circumstances. In the event of such a specific undertaking, the district, board, or person shall be liable or responsible for the conduct or safety of any pupil only while such pupil is or should be under the immediate and direct supervision of an employee of such district or board.

(Id.) § 44808 shields the District from liability in the regard, given the lack of evidence that the District played any role in Plaintiff's visits to Dr. Ayers.

There is also no evidence before the Court that the District knew or should have known, before the alleged incident occurred, that Dr. Ayers posed a foreseeable risk of sexually assaulting a child (or posed any risk at all). *See, e.g., (Z.V. v. County of Riverside (2015) 238 Cal.App.4th 889, 902* ["To establish negligent supervision, a plaintiff must show that a person in a supervisory position over the actor had prior knowledge of the actor's propensity to do the bad act."]) Plaintiff's FAC *alleges* that the District could or should have known that Dr. Ayers posed a risk to children if the District had conducted a diligent search into his background. But summary judgment pierces through such allegations and requires supporting evidence.

Here, there is no evidence that any report, complaint or concern regarding Dr. Ayers was ever brought to the District's attention prior to the alleged incident. (See Black Decl., Ex. F.) There is also no evidence that the District could or should have known that Dr. Ayers posed a risk of harm. Thus, even if Plaintiff had shown (which Plaintiff has not shown) that the District knew, before the incident occurred, that Plaintiff was seeing Dr. Ayers, Plaintiff still offers no evidence that such knowledge would have raised any red flag(s).

Plaintiff's "negligence per se" claim based on the District's alleged violation of Pen. Code § 11166 also fails as a matter of law.

This claim alleges that the District's failure to report the alleged sexual assault after Plaintiff allegedly mentioned the incident to a school tutor violated Pen. Code § 11166, and therefore supports a finding of "negligence per se." (FAC, Second Cause of Action, "Count II.") Plaintiff alleges that per § 11166, the District was a "childcare custodian[]" and had a statutory duty to report known or suspected incidents of sexual molestation or abuse of minors to a child protective agency." (Id.) This claim fails on multiple grounds.

First, as the District points out, the Legislature did not enact the Child Abuse and Neglect Reporting Act of 1980 (“CANRA”) until 1980, *years after* the alleged incident, and years after Plaintiff allegedly told a school district tutor about the incident. (UMF 1 [the sole alleged incident of sexual assault occurred during the 1977-1978 school year].) (See *DD Hair Lounge, LLC v. State Farm Gen. Ins. Co.* (2018) 20 Cal.App.5th 1238, 1245 [absent a clear contrary intent, courts presume that statutes do not apply retroactively].) Since CANRA did not exist when Plaintiff allegedly reported the incident to his tutor, it cannot serve as a statutory basis for Plaintiff’s negligence per se claim.

Further, and independently, even assuming (arguendo) that the after-the-fact enactment of CANRA triggered a reporting requirement, the District’s alleged failure to comply with CANRA could not have *caused* any harm/damage, because the only alleged incident of sexual assault occurred years before CANRA was enacted. As stated, Plaintiff’s case is based on a single incident that occurred in the 1977-78 timeframe. The District’s alleged failure to comply with a reporting statute enacted two plus years after-the-fact could not have proximately caused Plaintiff’s alleged harm.

For each of these independent reasons, **the negligence per se fails as matter of law.**

**AFTER THE BURDEN OF PRODUCTION SHIFTED TO PLAINTIFF TO PRESENT EVIDENCE RAISING A TRIABLE
ISSUE, PLAINTIFF PRESENTED NO EVIDENCE**

The District’s moving papers satisfied its burden under § 437c(p)(2) of establishing that “one or more elements of the cause of action ... cannot be established, or that there is a complete defense to the cause of action.” This shifted the burden of production to Plaintiff to show that a triable issue exists by setting forth the specific facts ... (§ 437c(p)(2); *Apex Sols., Inc. v. Falls Lake Ins. Mgmt. Co.* (First Dist., 2024) 100 Cal.App.5th 1249, 1256–57.)

Although the Court must, on summary judgment, view the evidence in favor of the opposing party, “because speculation is not evidence, speculation cannot create a triable issue of material fact.” (*Apex Sols., Inc., supra*, at 1256–57 [“A triable issue of fact can only be created by a conflict of evidence, not speculation or conjecture.”])

Here, Plaintiff has not opposed the Motion, and therefore, has not responded by producing any evidence sufficient to raise a triable issue of material fact as to Plaintiff’s negligence claim.

Conclusion

For the foregoing reasons, defendant District’s Motion for Summary Judgment is **GRANTED**. (Code Civ. Proc. § 437c.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Defendant shall prepare, for the court’s signature, a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. The court alerts the parties to revised Local Rule 3.403(b)(iv) (amended eff. Jan. 1, 2024) regarding the wording of proposed orders.

Posted: 3:00 P.M.

